

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 39
JUDICIAL OFFICER: EDWARD G WEIL
HEARING DATE: 02/19/2026

The tentative ruling will become the Court's ruling unless by 4:00 p.m. of the court day preceding the hearing, counsel or self-represented parties email or call the department rendering the decision to request argument and to specify the issues to be argued. Calling counsel or self-represented parties requesting argument must advise all other affected counsel and self-represented parties by no later than 4:00 p.m. of their decision to appear and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (*Local Rule 3.43(2).*)

Note: In order to minimize the risk of miscommunication, parties are to provide an **EMAIL NOTIFICATION TO THE DEPARTMENT OF THE REQUEST TO ARGUE AND SPECIFICATION OF ISSUES TO BE ARGUED**. Dept. 39's email address is: dept39@contracosta.courts.ca.gov. Warning: this email address is not to be used for any communication with the department except as expressly and specifically authorized by the court. Any emails received in contravention of this order will be disregarded by the court and may subject the offending party to sanctions.

Submission of Orders After Hearing in Department 39 Cases

The prevailing party must prepare an order after hearing in accordance with CRC 3.1312. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

1. 9:00 AM CASE NUMBER: C22-02168

CASE NAME: PEREZ VS. DAMORE

HEARING ON SUMMARY MOTION JUDGMENT

FILED BY: LATIF, SABEHA

TENTATIVE RULING:

Defendant Sabeha Latif's motion for summary judgment is **granted**.

Plaintiff was walking her dogs in Concord on October 7, 2020, when she was bit by Defendant Damore's dog, suffering injuries. (Comp. ¶¶ 6-7.) Plaintiff sued Damore for strict liability (causes of action one and two). Plaintiff sued Damore and Latif for negligence and premises liability (causes of action three and four). Plaintiff alleges that Defendants were negligent in allowing a dog to roam unrestrained at the time of the incident, failed to provide warnings and that Defendants had actual knowledge of the dangerous nature of the dog. (Comp. ¶¶ 19, 20, 27.)

Defendant Latif filed this motion for summary judgment, arguing that there is no liability under negligence or premises liability because Latif and her son had no knowledge of a dog at the property, let alone knowledge of a dangerous dog.

The elements of negligence are: (1) the existence of a duty of care, (2) breach of that duty of care, (3) proximate or legal causation, and (4) damages. *Vasilenko v. Grace Family Church* (2017) 3 Cal.5th 1077, 1083. "A necessary element of both [premises liability and negligence] causes of action is the existence of a legal duty to the plaintiff." (*Chee v. Amanda Goldt Property Management* (2006) 143 Cal.App.4th 1360, 1369.)

"[I]t is well established that a landlord does not owe a duty of care to protect a third party from his or her tenant's dog unless the landlord has actual knowledge of the dog's dangerous propensities, and the ability to control or prevent the harm. [Citations.] ' "[A] duty of care may not be imposed on a landlord without proof that he knew of the dog and its dangerous propensities. Because the harboring of pets is such an important part of our way of life and because the exclusive possession of rented premises normally is vested in the tenant, ... *actual* knowledge and not mere constructive knowledge is required. For this reason ... a landlord is under no duty to inspect the premises for the purpose of discovering the existence of a tenant's dangerous animal; only when the landlord has actual knowledge of the animal, coupled with the right to have it removed from the premises, does a duty of care arise." ' [Citations.]" (*Chee v. Amanda Goldt Property Management* (2006) 143 Cal.App.4th 1360, 1369-70; accord *Lundy v. Cal. Realty* (1985) 170 Cal.App.3d 813, 821.)

In opposition, Plaintiff argues that there should be duty here based upon a general duty analysis. Plaintiff's argument ignores the line of cases discussing a landlord's duty regarding a tenant's dog. The only dog injury case Plaintiff cites, *Drake v. Dean* (1993) 15 Cal.App.4th 915, is distinguishable as the defendant was the property owner and dog owner. There was no discussion of liability for a landlord.

The Court follows established case law, which holds that a landlord has no duty to protect others from a tenant's dog unless the landlord had actual knowledge of the dog and its dangerous propensities.

Here, Defendant's evidence shows that Defendant Latif rented the property where the bite occurred to Defendant Damore since 2012. (S. Latif dec. ¶4.) The dog that bit Plaintiff was a large white Akhita. (Perez depo. 18:2-3; 20:10-12.) Latif managed the property until 2019 when her son, Umair Latif, started managing the property (S. Latif dec. ¶3-4; U. Latif dec. ¶5.) Until 2019, Defendant Latif would drive by the property once a month and visit the property to address maintenance issues. (S. Latif dec. 4.) Defendants' son began managing the property in 2019 and would drive by the property twice a month and visit the property for maintenance issues. (U. Latif dec. ¶6.) Both Defendant Latif and her son state that they did not know there was a white Akhita dog at the property. (S. Latif dec. ¶6; U. Latif dec. ¶6.) They also state that they did not know that the dog had attacked or bitten anyone before, they did not receive any complaints about the dog and they did not know of the dog's dangerous or vicious propensity. (S. Latif dec. ¶¶ 10-16; U. Latif dec. ¶¶11-16.)

Thus, the evidence shows that Defendant and her son had no knowledge of the dog and further no knowledge that the dog was dangerous. Defendant's evidence is sufficient to meet her burden showing that the negligence and premises liability claims fail because Defendant did not owe a duty here.

Plaintiff "disputed" several of the material facts by stating "Defendant relies solely on its own Self-Serving Declaration and is Insufficient to Establish this Fact for Purposes of Summary Judgment. Unknown to Plaintiff." Such a statement is insufficient to dispute the material fact cited. (*Trujillo v. First American Registry, Inc.* (2007) 157 Cal.App.4th 628, 636 [the court should not reject a declaration as self-serving in a motion for summary judgment] (disapproved on other grounds in *First Student Cases* (2018) 5 Cal.5th 1026, 1026); see also Code of Civil Proc. §437c(e).)

Plaintiff did not provide any evidence in opposition to this motion. And thus, Plaintiff has not shown that there is a triable issue of material fact here.

In opposition, Plaintiff argues that Defendant has not met her burden on the strict liability claims. Plaintiff did not sue Defendant for strict liability and therefore those claims are not part of this motion. "The pleadings play a key role in a summary judgment motion and ""set the boundaries of the issues to be resolved at summary judgment."" [Citation.]" (*Jacobs v. Coldwell Banker Residential Brokerage Co.* (2017) 14 Cal.App.5th 438, 444.)

Therefore, the Court grants Defendant's motion for summary judgment.

2. 9:00 AM CASE NUMBER: C24-00212
CASE NAME: ADAM RIVAS VS. CAM TRUONG
HEARING ON SUMMARY MOTION JUDGMENT TO BE FILED BY DEFENDANT'S CAM TROUNG ETC.
FILED BY: TRUONG, CAM M
TENTATIVE RULING: